

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:		
Trf from:		
Reviewer:	Initials	Date
Agent:		/ /
Chief:		/ /

To be completed by City/County Clerk

License Fees	Annual Fee: \$	Local License #: 31
Prorated Fee: \$	Date filed with clerk: 2 / 28 / 2022	
Transfer Fee: \$ 100.00	Advertising Dates: (2 Weeks) 3/17 & 3/24/2022	
Publishing Fee: \$ 100.00	Hearing Date: 3 / 28 / 2022	
Publishing Fee Direct Billed to Applicant: ☐		
License Term: upon / acquisition	Through: 3 / 31 / 2023	

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.

Applicant: WYOMING Horse Racing LLC
Trade/Business Name (dba): HORSE PALACE
Building to be licensed/Building Address: 1601 Central Ave
Local Mailing Address: Cheyenne WY 82001 Laramie
Local Business Telephone Number: (954) 873-6393
Business E-Mail Address: PAULRYBER@WYOMINGHORSERACING.COM

FILING FOR

- ☐ NEW LICENSE
☐ TRANSFER OF LOCATION

FILING IN (CHOOSE ONLY ONE)

- ☒ CITY OF: Cheyenne
☐ COUNTY OF:

FILING AS (CHOOSE ONLY ONE)

- ☐ INDIVIDUAL
☐ PARTNERSHIP
☐ LP/LLP
☒ LLC
☐ CORPORATION
☐ LTD PARTNERSHIP
☐ ORGANIZATION
☐ OTHER

TRANSFER OWNERSHIP

FORMERLY HELD BY:

ASSIGNMENT LETTER ATTACHED

Prime Realty LLC

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)

RETAIL LIQUOR LICENSE
ON-PREMISE ONLY
(BAR)

- ☐ OFF-PREMISE ONLY
(PACKAGE STORE)

- ☒ COMBINATION
ON/OFF PREMISE
(BOTH BAR & PACKAGE STORE)

- ☐ RESTAURANT LIQUOR LICENSE
☐ RESORT LIQUOR LICENSE
☐ BAR AND GRILL

LIMITED RETAIL (CLUB)

- ☐ VETERANS CLUB
☐ FRATERNAL CLUB
☐ GOLF CLUB
☐ SOCIAL CLUB

- ☐ MICROBREWERY
☐ WINERY
☐ DISTILLERY SATELLITE
☐ WINERY SATELLITE
☐ COUNTY RETAIL/SPECIAL
MALT BEVERAGE PERMIT

SPECIAL DESIGNATIONS

- ☐ CONVENTION FACILITY
☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM
☐ GOLF CLUB
☐ GUEST RANCH
☐ RESORT

To Assist the Liquor Division with scheduling inspections: OPERATIONAL STATUS

- ☒ FULL TIME (e.g. Jan through Dec)
☐ SEASONAL/PART-TIME
☐ NON-OPERATIONAL/PARKED

(specify months of operation)

DAYS OF WEEK (e.g. Mon through Sat)

HOURS OF OPERATION (e.g. 10a - 2a)

from JAN. to DEC.
from Monday to Sunday
from 8 AM to 2 AM

ALL APPLICANTS MUST COMPLETE QUESTIONS 1-4**1. BUILDING OWNERSHIP:** Does the applicant? W.S. 12-4-103(a)(iii)(a) **OWN** the licensed building?☐ YES (own)(b) **LEASE** the licensed building? (Lease must be through the term of the liquor license)☒ YES (lease)

If Yes, please submit a copy of the lease and indicate:

(i) When the lease expires, located on page 1 paragraph 3 of lease.(ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page 2paragraph 6 + 7 of lease. AND Page 4 paragraph 4
(MUST contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES**)*2/2029
amendment #1***2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)**☐ YES ☒ NO**3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403**

(a) Hold any interest in the license applied for?

☐ YES ☒ NO

(b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business?

☐ YES ☒ NO

(c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs?

☐ YES ☒ NO(d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:**4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)**☐ YES ☒ NO

If "YES", explain:

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☐ YES ☐ NO**6. RESORT LICENSE:**

Does the resort complex:

(a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i)

☐ YES ☐ NO

(b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii)

☐ YES ☐ NO

(c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii)

☐ YES ☐ NO

(d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv)

☐ YES ☐ NO

(e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)

1. If Yes, have you submitted a copy of the food and beverage contract/lease?

☐ YES ☐ NO**7. MICROBREWERY LICENSE:**

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT☐ BAR AND GRILL☐ WINERY

(b) Do you self distribute your products? W.S. 12-2-201(a)

☐ YES ☐ NO

(Requires wholesale malt beverage license with the Liquor Division)

8. WINERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT☐ BAR AND GRILL☐ MICROBREWERY

0000

9. LIMITED RETAIL (CLUB) LICENSE:**FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)**

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:**VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):**

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:**GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):**

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:**SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):**

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
WY Funding LLC	N/A	P.O. Box 1247	954-873 6393	N/A	100%	YES ☐ NO ☒	YES ☐ NO ☒
(See attached for officer list)						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☐ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by **ALL** individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

*Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.*

STATE OF WYOMING)
COUNTY OF Laramie) SS.

Signed and sworn to before me on this 22nd day of February, 2022 that the facts alleged in the foregoing instrument are true by the following:

1) <u>[Signature]</u> (Signature)	<u>PAUL Ryden</u> (Printed Name)	<u>General Manager - Wyoming Horse Racing LLC</u> Title
2) _____ (Signature)	_____ (Printed Name)	_____ Title
3) _____ (Signature)	_____ (Printed Name)	_____ Title
4) _____ (Signature)	_____ (Printed Name)	_____ Title
5) _____ (Signature)	_____ (Printed Name)	_____ Title
6) _____ (Signature)	_____ (Printed Name)	_____ Title

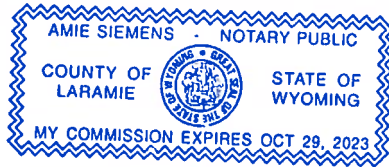


Witness my hand and official seal:

[Signature]
Signature of Notary Public

(2/21)
(SEAL)

My commission expires: October 29, 2023



Supplemental Schedule in Response to Question 14 - Officer List for Wy Funding LLC and Wyoming Horse Racing LLC

Name	DOB	Address	Phone	Yrs in LLC	% of Stock	Have you ever been convicted of a felony violation	Have you been convicted of a violation relating to Alcoholic liquor or Malt Beverages
Nicholas Hughes	07-18-1958	16566 Sagamore Bridge Way, Delray Beach FL 33446	270-776-5744	2	0%	No	No
John H. Sheldon, III	09-05-1954	11383 Merado Peak Dr. Las Vegas, NV 89135	513-544-6207	2	0%	No	No
Peter Liguori	12-06-1957	100 N Addison Ave – Unit 503 Elmhurst, IL	312-618-6922	2	0%	No	No
Paul Ryder	02/22/1950	2016 S Greeley HYW - Apt 12E Cheyenne WY 82007	954-873-6393	1	0%	No	No

Prime Realty, LLC

PO Box 1142
Cheyenne, WY 82003

Mayor Patrick Collins
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

RE: City of Cheyenne Liquor License #31
Transfer from Prime Realty, LLC to Wyoming Horse Racing, LLC
Located at 1601 Central Avenue

We are requesting the City of Cheyenne allow us to transfer license #31 to Wyoming Horse Racing, LLC. They will be located in the same building that the current License is assigned to, 1601 Central Ave, – also known as the Grier Bldg. This is an exciting time for downtown and we believe this transfer is consistent with the long-term goals of the City and the Downtown Development Authority. Please consider this letter our official request that this transfer be made.

Sincerely,

Authentisign
Prime Realty, LLC DSurdam
2/28/2022 7:43:00 PM GMT

02/28/2022

Dan Surdam
Member, Prime Realty, LLC

Wyoming Horse Racing, LLC

PO Box 1247
Cheyenne, WY 82003

Mayor Patrick Collins
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

RE: City of Cheyenne Liquor License #31
Transfer from Prime Realty, LLC to Wyoming Horse Racing, LLC
Located at 1601 Central Avenue

Dear Mayor Collins:

We have just signed a Lease for the 1st floor and mezzanine level of the Grier Building located at 1601 Central Ave. in historic downtown Cheyenne. Prime Realty, LLC currently holds a Liquor License for that space which was formally Dillinger's.

We are requesting a transfer of this license, #31, to our establishment to compliment the operation of a Historic Horse Racing Off-Track Betting facility. We are excited about our new location and look forward to assisting the Downtown establishments in their growth and viability.

We have completed the necessary application to facilitate this transfer. Please feel free to call with any additional questions you may have regarding this request.

Sincerely,

A handwritten signature in black ink, appearing to read 'Paul Ryder', with a stylized flourish at the end.

Paul Ryder
General Manager, Wyoming Horse Racing, LLC

**Amendment # 1 to
LEASE AGREEMENT
1601 Central Ave.
Cheyenne, WY 82001**

Prime Realty, LLC, a Wyoming limited liability company ("Landlord"), and Wyoming HorseRacing, LLC, a Wyoming limited liability company ("Tenant") hereby agree to amend that certain Lease Agreement (the "Lease") between the parties entered into and made effective as of March 1st, 2022 as follows:

Landlord is transferring Cheyenne Liquor License #31 to Tenant for the purposes of allowing the SALE OF ALCOHOLIC or MALT BEVERAGES on the premises.

TENANT:

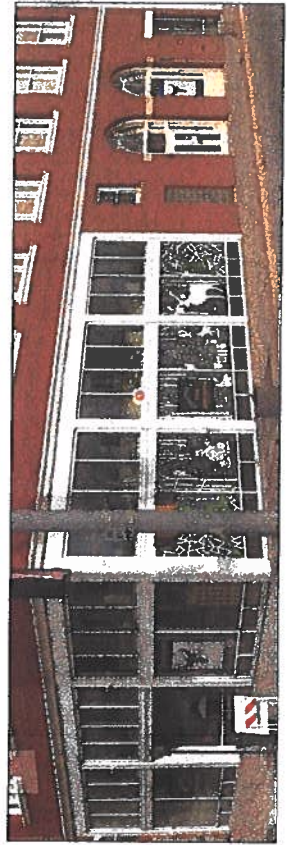
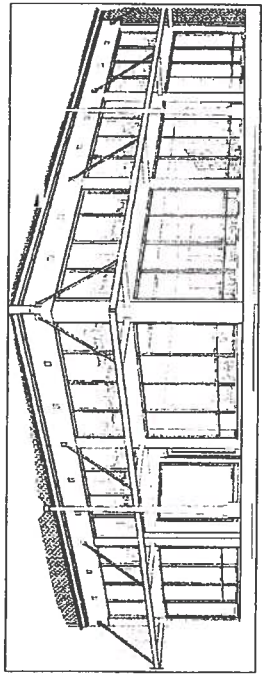
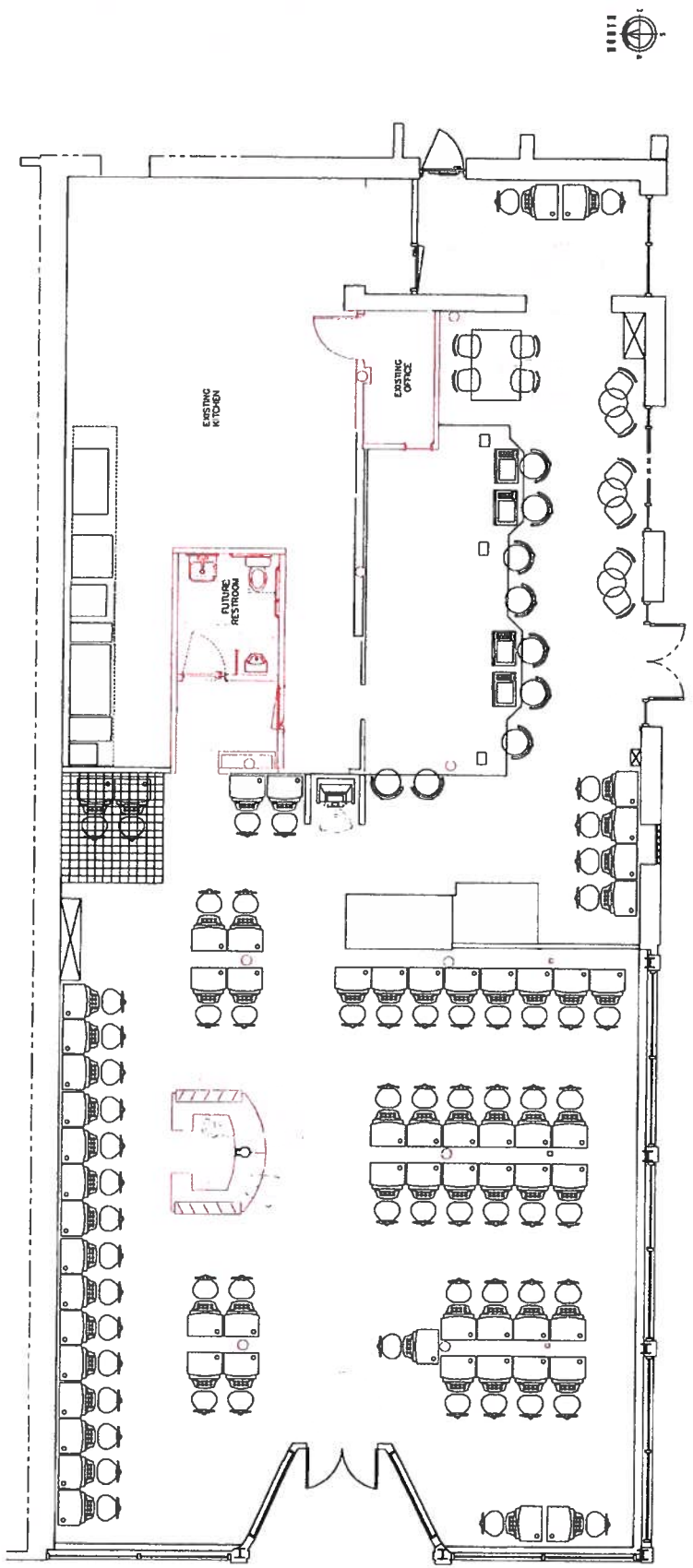
Wyoming Horse Racing, LLC,
a Wyoming limited liability company

By: 
Name: Nicholas Hughes
Title: President
Date: 02/25/2022

LANDLORD:

Prime Realty, LLC,
a Wyoming limited liability company

By: 
Name: Dan Surdam
Title: Member
Date: 02/25/2022



Confidential

STATE OF WYOMING * SECRETARY OF STATE
EDWARD A. BUCHANAN
BUSINESS DIVISION

Herschler Bldg East, Ste.100 & 101, Cheyenne, WY 82002-0020

Phone 307-777-7311

Website: <https://sos.wyo.gov> · Email: business@wyo.gov

Filing Information



Please note that this form **CANNOT** be submitted in place of your Annual Report.

Name **Wyoming Horse Racing LLC**

Filing ID **2011-000599488**

Type Limited Liability Company

Status

Active

General Information

Old Name

Sub Status

Current

Fictitious Name

Standing - Tax

Good

Standing - RA

Good

Sub Type

Standing - Other

Good

Formed in Wyoming

Filing Date

03/31/2011 2:55 PM

Term of Duration Perpetual

Delayed Effective Date

Inactive Date

Principal Address

Mailing Address

311 W 18th St
Cheyenne, WY 82001

PO Box 1247
Cheyenne, WY 82003

Registered Agent Address

COGENCY GLOBAL INC.
1912 Capitol Ave Ste 500
Cheyenne, WY 82001

Parties

Type	Name / Organization / Address
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Organizer	Eugene T Joyce
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Notes

Date	Recorded By	Note
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Filing Information



Please note that this form CANNOT be submitted in place of your Annual Report.

Name **Wyoming Horse Racing LLC**

Filing ID **2011-000599488**

Type **Limited Liability Company**

Status

Active

Registered Agent Organization Name Changed From: Corporation Service Company To: COGENCY GLOBAL INC

Registered Agent Physical Address 1 Changed From: 1821 Logan Ave To: 1912 Capitol Ave Ste 500

2022-003558711 Address Update

02/07/2022

Principal Address 1 Changed From: WHR LLC To: 311 W 18th St

Principal Address 2 Changed From: P O Box 3210 To: No value

Principal City Changed From: Evanston To: Cheyenne

Principal Postal Code Changed From: 82930 To: 82001

2015-001705546 Delinquency Notice - Tax

03/02/2015

2013-001469689 Delinquency Notice - Tax

03/02/2013

2011-000964926 Contact Update

03/31/2011

Contact Update Date Changed From: No value To: 03/31/2011

See Filing ID Initial Filing

03/31/2011

2022

Limited Liability Company Annual Report

Due on or Before: March 1, 2022
ID: 2011-000599488
State of Formation: Wyoming
License Tax Due: \$807.56
AR Number: 07077348

For Office Use Only

Wyoming Secretary of State
Herschler Bldg East, Ste.100 & 101, Cheyenne, WY
82002-0020

307-777-7311

Must be mailed to be processed.

Pending

Wyoming Horse Racing LLC

1: Mailing Address

PO Box 1247
Cheyenne, WY 82003

Current Registered Agent:

COGENCY GLOBAL INC.
1912 Capitol Ave Ste 500
Cheyenne, WY 82001

2: Principal Office Address

311 W 18th St
Cheyenne, WY 82001

• Please review the current Registered Agent information and, if it needs to be changed or updated, complete the appropriate form available from the Secretary of State's website at <https://sos.wyo.gov>

Phone: (815) 954-3213

Email: sszybilski@pacesetterrg.com

I hereby certify under the penalty of perjury that the information I am submitting is true and correct to the best of my knowledge.


Signature

SCOTT SZYBILSKI
Printed Name

February 17, 2022
Date

The fee is \$60 or two-tenths of one mill on the dollar (\$.0002), whichever is greater.

Instructions:

1. Complete the required worksheet;
2. Sign and date this form; and
3. Return both the form and worksheet to the Secretary of State at the address provided above.

Wyoming Horse Racing, LLC

PO Box 1247
Cheyenne, WY 82003

Mayor Patrick Collins
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

RE: City of Cheyenne Liquor License #31
Transfer from Prime Realty, LLC to Wyoming Horse Racing, LLC
Located at 1601 Central Avenue

Please be advised that Wyoming Horse Racing, LLC will be implementing the alcohol training program (TIPs) pursuant to City of Cheyenne City Code Chapter 5.12 requirements.

Sincerely,



Paul Ryder
General Manager, Wyoming Horse Racing, LLC

Lien Search Report

Record Date Range: 1/1/2012 - 2/23/2022

Grantor/Grantee: PRIME REALTY LLC

Laramie County

Wednesday, February 23, 2022 1:55 PM

Doc #	Recorded	Doc Date	Type	Book	Page	File #	Return Address
Grantor		Grantee		Consideration	UCC Description		

No Results Found

A SEARCH OF THE RECORDS OF THIS OFFICE INDICATES THE LISTING BELOW IS A RECORD OF THE PRESENTLY EFFECTIVE FINANCING STATEMENTS AND STATEMENTS OF ASSIGNMENT WHICH WE HAVE FOUND ON RECORD. THE UNDERSIGNED, FOR HIMSELF AND FOR LARAMIE COUNTY, DISCLAIMS ANY WARRANTIES, EXPRESS OR IMPLIED, THAT THE FOREGOING IS ABSOLUTELY EXHAUSTIVE AND CORRECT AND NEITHER SHALL BE LIABLE IN ANY WAY WHATSOEVER FOR ANY LOSS OR DAMAGE OF ANY KIND AS A RESULT OF ANY INACCURACIES OR OMISSIONS WITH REGARD TO THIS ABSTRACT. THE SOLE PURPOSE OF THIS ABSTRACT IS TO ACCOMMODATE PERSONS WHO ARE UNABLE OR UNWILLING TO PERSONALLY EXAMINE THE AFORESAID RECORDS.



CLERK OF LARAMIE COUNTY: Debra K. Lee

DEPUTY COUNTY CLERK

MY TERM EXPIRES JAN. 2, 2023

